

go beyond the legal scope of the case before the opposition division. The requirements of Art. 108 and R. 99(2) EPC were thus met. See also chapter V.A.3.2.3h) "Fresh ground for opposition on appeal".

j) Statement of grounds of appeal not filed in full

In T 382/16 the patent proprietor submitted with its rejoinder comparative tests (D 11). However, the rejoinder had not been signed because the last page of the rejoinder bearing the signature of the representative had not been transmitted. The whole rejoinder including the missing page 5 with the signature of the representative was submitted later. The board stated that in analogy to the provisions of R. 50(3) EPC, it was considered that the tests shall retain their original date of receipt and therefore were deemed to have been filed within four months of notification of the grounds of appeal.

In T 2307/15 the respondent argued that the appeal was inadmissible since the statement setting out the grounds of appeal sent by facsimile was incomplete. The board found that although some paragraphs were missing in the statement setting out the grounds of appeal, the document still allowed the reader to understand the reasons according to which the appellant requested the impugned decision to be set aside and the facts and evidence on which the appeal was based. The statement setting out the grounds of appeal received was therefore to be seen as being complete. Thus, the appeal was admissible. However see also T 858/18 regarding incomplete facsimile transmission and the observance of the time limit Art. 99(1) EPC.

k) Duty of board to be impartial

The case law of the boards of appeal was reviewed in T 922/05 and much of it found to take a relatively lenient position in the sense that the appeals were deemed to be admissible if the competent board was able to infer from the particulars of the case the presumed intentions of the applicant and the probable reasons underlying its actions (see T 563/91, T 574/91, T 162/97, T 729/90). However, excessive leniency towards one party would rightly be perceived as an injustice towards the other. The board was of the opinion that submissions of a party which only made it possible for a board to **infer** a line of argumentation did not fulfil the requirements of either the "**clear** reasons" or the "**express** specification of facts and arguments" as prescribed by the RPBA. The statement of the grounds of appeal filed by the appellant remained silent on at least two issues, which would have been clearly relevant for deciding on the appeal, and therefore should have been addressed by the grounds of appeal in order to be complete. The appeal was rejected as inadmissible (see also e.g. T 760/08, T 727/09, T 450/13, T 460/13).

In T 450/13 the board pointed out that the statement of grounds of appeal was not sufficiently substantiated with regard to the alleged public prior use attacks. A reference back to first instance proceedings was not a sufficient reasoning to render a submission in the statement of grounds of appeal admissible (see T 473/09). The submissions in the statement of grounds of appeal had to be such as to enable the board (and any other party) to understand immediately why the decision was alleged to be incorrect, without first having to make investigations on its own. To ask the board to do this would mean that the

board had to make up the appellant's case in breach of the principle of impartiality (see also T.1676/08).

2.6.4 New case raised

a) Appeal based on the same ground for opposition

According to the case law of the boards of appeal (see e.g. T.389/95, T.1063/98, T.1029/05, T.1915/09, T.1314/12), an appeal invoking a ground for opposition already invoked in opposition proceedings, i.e. remaining within the same legal framework, albeit being based on a completely fresh factual framework does not ipso facto lead to an inadmissible appeal. However, this finding does not necessarily mean that the new items of **evidence** only filed during the appeal procedure may not be disregarded by the board.

In T.389/95 an appeal was filed on existing grounds for opposition but based solely on new evidence introduced in the grounds of appeal. The board found the appeal to be admissible because the issue of new factual framework was one of fact to be determined objectively as part of the substantive examination of the appeal. G.10/91 allowed even a fresh legal ground for opposition to be considered in appeal proceedings if the patentee approved and it followed from this, that an appeal based solely on such a ground was not ipso facto inadmissible; by the same token an appeal based on the same legal ground, albeit on a completely fresh factual framework, might be admissible. See also T.932/99.

In T.611/90 (OJ 1993, 50) the opponent, on appealing the finding of the opposition division that the patent was novel and inventive, went on to develop what was an entirely fresh case on lack of novelty. Similarly, the appeal was found admissible in T.938/91, where the opponent (appellant) introduced a new alleged public prior use and citation; although a "fresh case" was presented by the appellant to the board, the fresh reasons still fell within the same ground for opposition.

Following T.611/90, the board in T.252/95 held that grounds could be deemed to be sufficient if new facts were submitted which removed the legal basis from the decision. That also applied where the grounds for opposition were based on new facts and there was no discussion whatsoever of the grounds for the opposition division's decision. See also T.801/00.

In T.2361/15 the appeal of the appellant was solely based on an alleged public prior use filed for the first time with its statement of grounds on the same ground for opposition. The board stated that bringing a fresh case in appeal does not automatically imply that the statement of grounds does not "indicate the reasons for setting aside the decision impugned". It is a sufficient condition that the statement of grounds of appeal enables the board to understand immediately why the decision is alleged to be incorrect and on what facts the appellant bases its arguments. The statement of grounds met this condition.

Similarly, in T.727/09 there was an entirely new set of facts, albeit based on the same ground for opposition. The board noted that if the statement of grounds of appeal is exclusively based on these new documents, there must be a direct and clear link between

the contested decision and the grounds for appeal. In the case at issue, the factual basis was, however, entirely new. The appeal was rejected as inadmissible.

b) Taking new submissions into consideration

The extent to which new submissions filed with the statement of grounds of appeal are taken into consideration is at the board's discretion as per Art. 12(4) RPBA 2020; for more detail on this point, see chapter V.A.3.2.2 "Complete case on appeal" and chapter V.A.4 "New submissions on appeal – case law on RPBA 2020".

In T 278/15, the board held that, having found an appeal to be admissible, it could not deem it inadmissible retroactively even if it later exercised its discretion not to admit an amended request into the proceedings. The admissibility of the appeal had to be examined on the basis of all the documents filed by the appellant within the deadline, even if these documents were subsequently excluded from the proceedings (see explanatory remarks to Art. 12(4) RPBA 2020, Supplementary publication 2, OJ 2020).

In T 2270/17, the board held that when deciding whether the appeal had been adequately reasoned, it was immaterial that D7 and D8 were new documents that had not been part of the opposition proceedings. Specifically, a statement of grounds of appeal could be admissible even if the facts and evidence liable to deprive the contested decision of its basis which it cited in support of an existing ground for opposition were new. The board's later, discretionary decision on whether to exclude any such new submissions from the appeal proceedings as per Art. 12(4) RPBA 2007 had no retroactive effect on the admissibility of the appeal.

In T 501/09 the board was aware that other boards of appeal had found that an appeal based entirely on new evidence may be admissible when the grounds for opposition have remained the same (see T 1557/05). However, this finding does not necessarily mean that the new items of evidence only filed during the appeal procedure may not be disregarded by the board (see e.g. T 389/95). If this new evidence is subsequently not admitted in the appeal proceedings this has the consequence that the appellant's case on appeal is not substantiated.

c) Amended claims filed

i) General

It is settled case law that the grounds for appeal can also be considered sufficient where they refer to new facts which deprive the decision of its legal basis (T 252/95, T 760/08), particularly where new sets of claims are filed (T 934/02, T 2226/13). An appeal is not necessarily rendered inadmissible by an appellant filing amended claims, and defending the patent solely on the basis of claims as amended in the grounds of appeal (T 1320/19).

In T 655/03 an appeal by the patent proprietor was to be considered as sufficiently substantiated to satisfy the requirements of Art. 108 EPC, third sentence, even if it did not state any specific reason why the decision was contested, provided that two criteria were

met: there is a change in the subject of the proceedings due to the filing of amended claims together with the statement setting out the grounds of appeal, and the reasons for the decision are no longer relevant in view of the amended claims. See also T 717/01, T 934/02 and T 1708/08.

The board in T 934/02 added that it was therefore not necessary and would also be pointless for the purposes of adequately substantiating an appeal, to file grounds in support of a version of a claim that the appellant (patent proprietor) was no longer defending in the appeal proceedings. See also T 1197/03 and T 642/05. However, where the application was not refused on the basis that the previous set of claims on file could not be allowed, i.e. for lack of clarity, novelty or inventive step, rather on the ground that there was no agreed set of claims, filing new claims was not an adequate response (T 573/09); the statement of grounds should have set out why the appellant should be given the opportunity to have the proceedings continued before the board.

In T 2532/11 the question arose whether newly filed requests could be seen as implicit grounds of appeal. A statement of grounds of appeal supported by amended claims may define, at least implicitly, the extent to which the appellant wishes the decision under appeal to be set aside. The board of appeal has the duty to assess whether the appeal is well founded within the framework of the case as presented by the appellants but it cannot guess what the arguments are, let alone, provide arguments in lieu of the appellants. A direct link must be maintained between the decision under appeal and the statement of grounds of appeal, which had not been done in the case in hand.

Where amended claims are filed, the appeal's admissibility does not depend on whether the board later admits those claims into the proceedings or whether the appellant's case is ultimately convincing (T 2558/16). The extent to which amended claims filed with the statement of grounds of appeal are taken into consideration is at the board's discretion as per Art. 12(4) RPBA 2020; for more detail on this point, see chapter V.A.4.3 "First level of the convergent approach – submissions in the grounds of appeal and the reply – Article 12(3) to (6) RPBA 2020".

ii) Adequate reasoning for filing amended claims

- Patent proprietor

It is not an absolute requirement for admissibility that the appellant should attack the opposition division's decision as flawed. Where amended claims have been filed, an appeal may also be admissible if sufficient reasons are given in the statement of grounds why the amendments are considered apt to remedy the deficiencies identified by the opposition division (T 1668/14, see also T 278/15, T 1311/17 and T 1320/19). In T 1610/15, the board added that the appeal's admissibility did not depend on whether the appellant's case was ultimately convincing or whether the board later admitted the amended claims into the proceedings. See also T 1320/19.

However, it was not enough merely to file a new set of claims without comment. Rather, appellants had to set out why and to what extent the amended set of claims was a

response to the factual and legal assessment on which the opposition division had based its decision (T 220/83, OJ 1986, 249; and T 145/88).

The amendments should address the reasons for the decision being contested (T 2453/09). See also T 1533/13.

In T 1276/05 the patent proprietor/appellant reverted back to a form of claim which had been effectively withdrawn during the opposition proceedings, i.e. the patent as granted, without explaining why the contested decision was wrong. The board noted that the lack of a need for explanation was based on the specific situation of the case before it, wherein – unusually – the offered amendments self-evidently overcame the grounds for the decision and the appeal was thus admissible.

- Applicant

In T 933/09 the board considered that the mere filing of amended claims did not exonerate the appellant from the task of expressly specifying in the statement of grounds of appeal the relevance of the amendments for overcoming the objections on which the decision under appeal was based.

The mere fact of filing amended claims with the statement of grounds of appeal is not sufficient if it does not overcome the reasons for the refusal in the case at issue. The appellant in T 1707/07 did not address the reasons given in the decision under appeal and it was thus not clear to the board why the decision under appeal was alleged to be incorrect. The appeal was rejected as inadmissible. See also T 502/02 and T 132/03.

In T 295/04, the statement of grounds contained only a general reference to pleadings submitted during the proceedings at first instance and a set of new claims. Since such a general reference could not be regarded as setting out why the department of first instance's decision should be amended, the appeal was dismissed as inadmissible.

2.6.5 References to earlier submissions

The boards have frequently held that a statement of grounds referring generally to submissions made at first instance, as a rule, cannot be considered sufficient for the purposes of Art. 108, third sentence, EPC (see e.g. T 254/88, T 432/88, T 534/89, T 90/90, T 154/90, OJ 1993, 505; T 287/90, T 188/92, T 646/92, T 473/09, T 47/12, T 450/13, T 16/14, T 2411/16).

In T 1311/13 the board stated that a mere reference to a party's earlier submissions and/or the verbatim repetition of the arguments presented in those submissions ("grounds by cut-and-paste"), including the submissions or arguments put forward at the oral proceedings before the opposition division, without actually dealing with, or entering into a discussion of the reasons given in the decision under appeal by the opposition division for arriving at its decision, was not enough to substantiate a ground of appeal.